The Judiciary

One Judicial Pool feeds every federal court. The same eligibility floor, the same nomination-and-confirmation pattern, all the way from a district bench to the Supreme Court — with a vacancy cascade that never leaves a seat empty.

§4.1 – §4.6, §9.4.a
10 provisions

THREE TIERS, ONE SOURCE

District Courts	→	Appellate Courts	→	Supreme Court
Established by statute · trial-level jurisdiction		Senior judge auto-fills any SC vacancy		At least 5 justices · statutory size · staggered classes

The Judicial Pool — §4.2, §9.4.a

One unified pool feeds **every** federal judicial appointment. Entry requires 15 years of legal practice or 10 years of judicial service, no current government position, and no disqualifying financial interest — the same entry floor for every nominee; statute may add objective qualifications for the Supreme Court (§4.4). The Elections Panel administers it; the JM audits it; the pool is publicly accessible on the NRS at all times.

Inferior Court Judge

CC NOMINATES → SENATE CONFIRMS BY MAJORITY OF FULL SEATED MEMBERSHIP → 12-YEAR TERM

Supreme Court Justice

CC NOMINATES → SENATE CONFIRMS BY MAJORITY OF FULL SEATED MEMBERSHIP (VOTE WITHIN 120 DAYS) → 12-YEAR TERM

WHEN A SUPREME COURT SEAT OPENS UNEXPECTEDLY — §4.4, §4.4.A

STAGE 1 · IMMEDIATE

Auto-Designation

Most senior Appellate judge becomes Temporary Associate Justice — full voting rights, no nomination needed.

→

NORMAL PATH

CC Nominates

Within 60 days (or a shorter statutory period), from the Judicial Pool. Senate must vote within 120 days — no deemed confirmation.

→

IF CC FAILS TO NOMINATE

Public Confirmation

The Temporary Justice remains and goes to public confirmation at the next federal electoral period. A CC nomination and Senate confirmation completed before Panel certification ends that route. Voters confirm at 60%.

or

IF SENATE FAILS TO VOTE

Public Confirmation

If the CC misses the nomination deadline or the Senate misses its voting deadline, the Temporary Justice goes on the next federal ballot. Confirmation requires 60%; an ordinary nomination and Senate confirmation before certification ends the public route (§4.4.a).

HOW A JUDGE LEAVES

Supreme Court Justice §4.3.a

`Cause required` → `Concurrent vote` → `2/3 both chambers`

Three grounds: constitutional breach in judicial authority, demonstrated permanent incapacity, or serious misconduct. No Monitor finding is required. Published grounds and concurrent 2/3 votes of both chambers are required; judicial disagreement is never cause.

Inferior Court Judge §4.2

`Legislative` / `Judicial discipline` / `Cause required`

Two removal tracks, both for cause: legislative removal by 2/3 of both chambers, or statutory judicial discipline under SC oversight. No Monitor finding is a prerequisite. Policy disagreement is never cause (§4.2).

NUMBERS WORTH REMEMBERING

12 years — ordinary judicial term. Mid-term SC replacements serve the remainder. §9.4.a bars repeat service on the same federal court; other-court service remains possible except after SC service.

5 justices minimum to decide a **constitutional question** — regardless of how many seats are currently filled.

48h ceiling (statute may set less) for the SC to rule on **immediate defensive military authority**; one extension is possible for demonstrated necessity (§4.5(8)).

A theoretical constitutional design project — not the law of any existing nation.